X-19 Data Center Moratorium

19.1 This ordinance shall be known and may be cited as the “Wiscasset Data Center Moratorium Ordinance” (the “Ordinance”).

19.2 Authority.

This Ordinance is enacted by the Town of Wiscasset pursuant to the Home Rule authority granted to municipalities under Article VIII, Part Second, Section 1 of the Maine Constitution, 30-A M.R.S. § 3001, 30-A M.R.S. § 4356, and pursuant to the Town's authority to protect the public health, safety, and general welfare of its residents.

19.3 Findings and purpose.

The voters of the Town of Wiscasset find and declare the following:

a. Data centers are large-scale facilities used to house computer systems and associated components, including servers, storage systems, and networking equipment, which require substantial and sustained inputs of electricity, water, and other municipal or regional infrastructure resources.

b. The rapid national and regional growth of data center development, driven in significant part by demand for artificial intelligence and cloud computing services, has led to new and unforeseen interest in such development in the State of Maine.

c. The Governor of Maine vetoed proposed statewide legislation that would have established a temporary statewide moratorium on data center development, and the Maine Legislature sustained that veto, leaving the regulation of data center siting and development primarily to individual municipalities.

d. The Town's current Ordinances and related development review provisions were not drafted with data centers in mind and do not adequately address the potential impacts of such facilities on the Town's electric grid, water supply, and wastewater capacity, noise levels, light pollution, visual character, traffic, and overall quality of life.

e. Without careful study and the adoption of appropriate local standards, the development of one or more data centers within the Town could impose substantial and potentially irreversible burdens on the Town's infrastructure, natural resources, ratepayers, and residents.

f. The Town requires time to study these potential impacts, to consult with relevant state agencies, utilities, and other municipalities, and to consider whether and how to amend its Ordinances to adequately regulate data center development, if at all.

g. It is therefore necessary and in the public interest to temporarily suspend the acceptance, processing, and approval of applications related to data center development within the Town, pending further study.

19.4 Definitions.

For purposes of this Ordinance, the following terms shall have the meanings set forth below:

a. "Data center" means any facility which may be a freestanding structure or a facility within a larger structure, that primarily contains electronic equipment used for data processing, data storage, cloud computing or similar computing infrastructure services that uses environmental control equipment to maintain the proper conditions for the operation of electronic equipment. "Data center" does not include a facility or portion of a facility containing electronic equipment that is incidental to and used in support of a business whose primary business activity is not the performance of data processing, data storage, cloud computing or similar computing infrastructure services.

b. “Development” means any application for or issuance of a building permit, site plan approval, subdivision approval, conditional use permit, variance, or any other municipal land use approval necessary to site, construct, enlarge, or expand a Data Center within the Town.

c. “Moratorium” means the temporary suspension established by Section 19.5 of this Ordinance.

19.5 Moratorium established.

From and after the effective date of this Ordinance, and continuing until lifted consistent with 30-A M.R.S. § 4356(2), the Town of Wiscasset shall not accept, process, review, or approve any application for the development of a new, enlarged, or expanded Data Center within the Town. This includes, without limitation, applications for building permits, site plan review, subdivision approval, special exceptions, conditional uses, variances, or any other permit or approval otherwise required under the Town’s ordinances or other applicable ordinances that would authorize the siting, construction, enlargement, or expansion of a Data Center.

Notwithstanding 1 M.R.S. § 302, or any law to the contrary, and regardless of the date of its enactment, this moratorium shall apply retroactively to any and all proceedings or applications filed on or after November 3, 2026. It shall stand repealed as of six (6) months following its enactment unless extended for one or more terms of not more than 180 days if the Select Board finds that the need for the moratorium still exists and reasonable progress is being made to alleviate the need for the moratorium as stated in Section 19.3.

This moratorium does not apply to routine maintenance, repair, or replacement of existing equipment within a lawfully existing structure that does not enlarge or expand a Data Center use, nor to municipal, school, or public safety information technology infrastructure operated by the Town or another governmental entity for its own governmental purposes.

19.6 Review and Report.

During the period the moratorium remains in effect, Town staff, appropriate committees, and other third parties shall review the Town's Ordinances and shall study the potential impacts of Data Center development on the Town's infrastructure, natural resources, and residents, including impacts on the electric grid, water supply, wastewater capacity, noise, light, traffic, and municipal finances.

Town staff shall report their findings and any recommended ordinance amendments to the Select Board. The Select Board shall make the report available to the public and shall determine, in its discretion, whether and when to place a warrant article on a Town Meeting warrant proposing that the moratorium be lifted, with or without accompanying ordinance amendments.

Nothing in this Section shall be construed to limit the Select Board's discretion to determine the content or timing of any warrant articles or ordinance amendments to be placed before the Town Meeting.

19.7 Enforcement.

No municipal officer, employee, board, or committee of the Town of Wiscasset shall accept, process, review, or approve any application for Development of a Data Center in violation of this Ordinance while the moratorium remains in effect. Any permit or approval purportedly issued in violation of this Ordinance shall be void and of no effect.

If any data center is opened or operated within the Town in violation of this Ordinance, such operation shall constitute a violation of this Ordinance and each day of such violation shall constitute a separate violation of this Ordinance. The Town's officers, officials and employees are hereby authorized to institute any and all rights available to it pursuant to 30-A M.R.S. § 4452, including fines and penalties, injunctive relief, and its reasonable attorneys' fees and costs in prosecuting any such violation.

Any of the Town's ordinances that are inconsistent or in conflict with the provisions of this Ordinance are hereby repealed to the extent applicable for the duration of the moratorium imposed by this Ordinance. If any section or provision of this Ordinance is declared by a court of competent jurisdiction to be invalid, such a declaration shall not invalidate any other section or provision.

19.8 Severability.

If any section, subsection, sentence, clause, or phrase of this Ordinance is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, such holding shall not affect the validity of the remaining portions of this Ordinance. The legislative body of the Town of Wiscasset hereby declares that it would have adopted this Ordinance and each section, subsection, sentence, clause, and phrase thereof irrespective of the fact that any one or more sections, subsections, sentences, clauses, or phrases be declared invalid or unconstitutional.

19.9 Effective date.

This Ordinance shall take effect immediately upon its adoption by the legislative body of the Town of Wiscasset at a Town Meeting.